

matter, showing, by a preponderance of the evidence, that she was aware of this litigation. Defendant has made no effort to file a change of address with the court. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$7,370.96, plus costs, and less any credits for payments received.

The agreement was included as an exhibit in the Declaration.

The case was then dismissed.

The Defendant made payments of \$122.85.

Costs are \$375.02 as detailed in the Declaration.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$7,623.13.

Plaintiff to file order on Motion, as well as submit Judgment.

7. 9:00 AM CASE NUMBER: L25-00937

CASE NAME: BANK OF AMERICA N.A. VS. DANIEL TOMPKINS

***HEARING ON MOTION IN RE: DISCOVERY FOR ORDER THAT MATTERS IN REQUEST FOR
ADMISSION OF TRUTH OF FACTS BE DEEMED ADMITTED**

FILED BY:

***TENTATIVE RULING**

Any party contesting this tentative ruling must email Dept14@contracosta.courts.ca.gov and opposing parties by 4:00 p.m. on the court day prior to the hearing (7/13/26). If oral argument is requested, the requesting party shall specify the issues to be argued. If properly contested, the hearing will take place on 7/14/26 at 2:00 p.m.

Plaintiff filed a motion for order that matters in request for admission of truth of facts be deemed admitted, on 2/26/26, along with an amended motion of 3/11/26. Both were served at the mailing address listed on Defendant's Answer.

Defendant filed a Response on 3/9/26.

Plaintiff has not filed a Reply.

This was originally scheduled to be heard on 6/16/26 but was continued by the court to 7/14/26. The Defendant was present when the court continued the matter, and the court provided mail notice to

the Plaintiff of the 7/14/26, appearance.

Background

The requested admissions at issue appear to be the same in either motion. In the interest of economy, this court will analyze the issues raised in the motion filed on 2/26/26 ("Motion").

Plaintiff attached the particular facts at issue, numbered One through Eight and entitled, "Set One," to Exhibit One of the Motion, as well as proof that they served Defendant with the discovery request by mail, on 6/13/25, and declared that Defendant never responded to the request.

Plaintiff attached a proof of service of this Motion, indicating mail service to Defendant at the address listed on Defendant's Answer, which is the same address where Defendant was personally served with process.

Defendant filed a Response, on 3/9/26, and properly served the Plaintiff. Defendant contends that he did respond to the discovery requests of Plaintiff, mailing the first of multiple responses on 7/7/25, and attached as exhibits one through three. Defendant states he mailed the subsequent responses after Plaintiff represented in court hearings that his responses were not received or incomplete. Defendant also represents that he had initially overlooked the request for admissions because of the way it was attached to the set of interrogatories.

Though he did not include proof that he served these discovery responses, they are contained in his Response, as Exhibits 1 through 3, and the Response was properly served. Defendant does not indicate if he served a copy of the responses in Exhibit 3.

Of the Exhibits Defendant provided, only Exhibit 3 contains responses to the requests for admission. These responses generally indicate that Defendant does not have the information to answer the request, or that he denies the request.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

In the instant matter, this court finds that Defendant's responses in Exhibit 3 are substantially compliant. Moreover, this court does not find any evidence contradicting Defendant's account that he mistakenly overlooked the request for admissions, and this was the reason for any untimely response.

Disposition

Plaintiff's Motion is denied.

Defendant to file Order and serve copy of filed Order on Plaintiff.